Fort Bend County District Court

Cause No. 2025-CV-0043

Corey Petty, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	January 7, 2025
Plaintiff's counsel:	Nina Stewart, Marshall & Dominguez LLP

PARTIES

Plaintiff Corey Petty is an individual residing in Texas who was the driver and sole occupant of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of insurance covering the plaintiff's vehicle and which is obligated to honor the coverage and claim terms of that policy.

FACTS

On June 27, 2024, Plaintiff was lawfully operating his vehicle in Sugar Land and was in the process of making a left turn at an intersection when his vehicle was struck by another mtoor vehicle. The collision occurred while Plaintiff was turning left and the force of the impact caused his vehicle to shift and his body to be thrown against the interior of the car. The other driver's vehicle was at fault for the collision. Pliantiff promptly reported the accident to Defendant and submitted a claim under the uninsured and underinsured motorist coverage of his policy, along with all documentation requested. Defendant has not paid the claim in full and has not provided a written explanation sufficient to resolve the outstanding amounts owed to Plaintiff.

NEGLIGENCE

Defendant owed Plaintiff a duty under the terms of its policy and under the Texas Insurance Code to investigate and evaluate his claim in good faith, to communicate with him about the status of the claim, and to pay benefits owed within the time required by law. Defendant breached these duties by delaying its evaluation, failing to adequately explain its position, and declining to pay amounts that the evidence reasonably supports. The other driver's negligence in striking Plaintiff's vehicle during a left turn caused the initial injury, and Defendant's failure to fulfill its contractual obligations compounded Plaintiff's harm.

DAMAGES

As a direct result of the collision, Plaintiff suffered a knee injury that has required medical treatment, imaging, and ongoing care, and that has caused pain, limietd mobility, and interference with his daily activities and work. Plaintiff has incurred medical expenses and lost income and will likely incur additional expenses in the future. Plaintiff seeks recovery of policy benefits, statutory interest, attorney's fees as permitted by law, and all other relief to which he is entitled. Plaitniff demands damages in the amount of $89,000.00.